

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine White	Team: Squad #13	CCRB Case #: 202300475	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 01/14/2023 7:20 PM, Saturday, 01/14/2023 7:56 PM	Location of Incident: McDonald's (803 Forest Avenue); En route to § 87(2)(b)	18 Mo. SOL 7/14/2024	Precinct: 120
Date/Time CV Reported Sun, 01/15/2023 9:57 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 01/15/2023 9:57 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Nicholas Bocchino	25780	971835	120 PCT
2. PO Kevin Young	27202	969434	120 PCT
3. PO Stephen Vega	07393	972301	120 PCT
4. PO Salvatore Todaro	00565	966369	120 PCT
5. PO Jamar Burke	18983	958349	120 PCT
6. PO Anza Kaleem	05505	966653	120 PCT
7. CPT Ronald Perez	00000	930943	120 PCT
8. Officers			120 PCT
9. An officer			120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO James Mastroilli	11943	956894	120 PCT
2. PO Edward Sciarrillo	11932	961637	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Kevin Young	Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Kevin Young used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Nicholas Bocchino	Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Nicholas Bocchino used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Salvatore Todaro	Abuse: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Salvatore Todaro searched § 87(2)(b)	C . Miscellaneous - Subject Retired
D . PO Nicholas Bocchino	Abuse: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Nicholas Bocchino searched § 87(2)(b)	D . Within NYPD Guidelines
E . PO Stephen Vega	Abuse: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Stephen Vega searched § 87(2)(b)	E . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
F . PO Jamar Burke	Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Jamar Burke used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Jamar Burke	Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Jamar Burke used a chokehold against § 87(2)(b)	G . Unfounded
H . PO Jamar Burke	Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Jamar Burke restricted § 87(2)(b)'s breathing.	H . Unfounded
I . PO Kevin Young	Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Kevin Young hit § 87(2)(b) against a wall.	I . Unfounded
J . PO Salvatore Todaro	Abuse: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Salvatore Todaro threatened to arrest § 87(2)(b)	J . Miscellaneous - Subject Retired
K . PO Anza Kaleem	Discourtesy: Police Officer Anza Kaleem spoke discourteously to § 87(2)(b)	K . Within NYPD Guidelines
L . Officers	Force: On January 14, 2023, at 803 Forest Avenue in Staten Island and en route to § 87(2)(b), officers used physical force against § 87(2)(b)	L . Unfounded
M . PO Kevin Young	Discourtesy: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Kevin Young spoke discourteously to § 87(2)(b)	M . Within NYPD Guidelines
N . An officer	Abuse: An officer interfered with § 87(2)(b)'s use of a recording device.	N . Alleged Victim Uncooperative
O . CPT Ronald Perez	Abuse: On January 14, 2023, at 803 Forest Avenue in Staten Island, Captain Ronald Perez forcibly removed § 87(2)(b) to the hospital.	O . Within NYPD Guidelines
P . PO Kevin Young	Force: On January 14, 2023, en route to § 87(2)(b), Police Officer Kevin Young restricted § 87(2)(b)'s breathing.	P . Unfounded
Q . PO Kevin Young	Abuse: On January 14, 2023, en route to § 87(2)(b), Police Officer Kevin Young failed to provide § 87(2)(b) with a business card.	Q . Substantiated
R . PO Jamar Burke	Abuse: On January 14, 2023, en route to § 87(2)(b), Police Officer Jamar Burke failed to provide § 87(2)(b) with a business card.	R . Substantiated
S . PO Salvatore Todaro	Abuse: On January 14, 2023, en route to § 87(2)(b), Police Officer Salvatore Todaro failed to provide § 87(2)(b) with a business card.	S . Miscellaneous - Subject Retired

Case Summary

On January 15, 2023, § 87(2)(b) reported this complaint to the CCRB via the call processing system on behalf of himself and his friend, § 87(2)(b) (BR01).

On January 14, 2023, at 7:20 p.m., at McDonald's, located at 803 Forest Avenue in Staten Island, § 87(2)(b) engaged in a dispute with employees, who called 911. Police Officers Kevin Young, Nicholas Bocchino, Jamar Burke, James Mastrorilli, Stephen Vega, Anza Kaleem, Edward Sciarillo, and Salvatore Todaro, and Captain Ronald Perez, all of the 120th Precinct, responded. PO Young and PO Bocchino used force to bring § 87(2)(b) to the ground (**Allegations A and B: Force – Physical Force, within NYPD guidelines**). PO Todaro, PO Bocchino, and PO Vega searched § 87(2)(b)'s pockets (**Allegation C: Abuse of Authority – Search of Person, miscellaneous – subject retired; Allegations D and E: Abuse of Authority – Search of Person, within NYPD guidelines**). PO Young and PO Burke used force to remove § 87(2)(b) from McDonald's (**Allegation A continued; Allegation F: Force – Physical Force, within NYPD guidelines**). PO Burke allegedly wrapped his arm around § 87(2)(b)'s neck from behind and attempted to restrict his breathing while removing him from McDonald's (**Allegations G and H: Force – Chokehold, Restricted Breathing; unfounded**). PO Young allegedly slammed § 87(2)(b)'s head into a door (**Allegations I: Force – Hit Against Inanimate Object, unfounded**). In the parking lot, PO Young, PO Burke, and PO Bocchino brought § 87(2)(b) down to the ground (**Allegations A, B, and F continued**), PO Todaro threatened to arrest § 87(2)(b) (**Allegation J: Abuse of Authority – Threat of Arrest, miscellaneous – subject retired**), and PO Kaleem said, "Do not fucking spit" (**Allegation K: Discourtesy – Word, within NYPD guidelines**). Officers allegedly threw § 87(2)(b) into an ambulance, then punched him in the legs (**Allegation L: Force – Physical Force, unfounded**). PO Young told § 87(2)(b) he was "acting like a child" (**Allegation M: Discourtesy – Word, within NYPD guidelines**). An officer allegedly prevented § 87(2)(b)'s friend, § 87(2)(b) from recording the officers' actions (**Allegation N: Abuse of Authority – Interference with Recording, alleged victim uncooperative**). Under the supervision of Captain Perez, the officers removed § 87(2)(b) to a hospital for a psychiatric evaluation (**Allegation O: Abuse of Authority – Forcible Removal to Hospital, within NYPD guidelines**). Inside the ambulance, PO Young allegedly restricted § 87(2)(b)'s breathing with a sheet (**Allegation P: Force – Restricted Breathing, unfounded**), and an officer allegedly punched § 87(2)(b) through the sheet (**Allegation L continued**). PO Young, PO Todaro, and PO Burke failed to give § 87(2)(b) a Right to Know Act card (**Allegations Q and R: Abuse of Authority – Failure to Provide RTKA Card, substantiated; Allegation S: Abuse of Authority – Failure to Provide a RTKA Card, miscellaneous – subject retired**).

No arrest or summons resulted from this incident.

The investigation obtained McDonald's CCTV footage (**BR02-04, summarized at BR05**), body-worn camera (BWC) footage (**BR06-14, summarized at BR15**), and TARU footage (**BR16, summarized at BR17**).

Findings and Recommendations

Allegation (A) Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Kevin Young used physical force against § 87(2)(b)

Allegation (B) Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Nicholas Bocchino used physical force against § 87(2)(b)

Allegation (F) Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police

Officer Jamar Burke used physical force against § 87(2)(b)
Allegation (G) Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Jamar Burke used a chokehold against § 87(2)(b)
Allegation (H) Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Jamar Burke restricted § 87(2)(b)'s breathing.
Allegation (I) Force: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Kevin Young hit § 87(2)(b) against a wall.
Allegation (J) Abuse of Authority: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Salvatore Todaro threatened to arrest § 87(2)(b)
Allegation (K) Discourtesy: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Anza Kaleem spoke discourteously to § 87(2)(b)
Allegation (L) Force: On January 14, 2023, at 803 Forest Avenue in Staten Island and en route to § 87(2)(b), officers used physical force against § 87(2)(b)
Allegation (M) Discourtesy: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Kevin Young spoke discourteously to § 87(2)(b)
Allegation (O) Abuse of Authority: On January 14, 2023, at 803 Forest Avenue in Staten Island, Captain Ronald Perez forcibly removed § 87(2)(b) to the hospital.
Allegation (P) Force: On January 14, 2023, en route to § 87(2)(b)
Police Officer Kevin Young restricted § 87(2)(b)'s breathing.

§ 87(2)(b) testified (BR18) that he requested fresh food, but an employee refused to replace his food. § 87(2)(b) argued with the employee, who called 911 and reported that § 87(2)(b) was threatening him and “acting crazy” with a knife. § 87(2)(b) denied having a knife or threatening the employee. § 87(2)(b) was not intoxicated in any way. Four officers arrived, including PO Young and PO Burke, and surrounded § 87(2)(b) who backed away from the counter with his hands up. PO Young and PO Burke handcuffed § 87(2)(b) and said he was being taken a hospital for a mental evaluation because he was intoxicated. PO Young grabbed the back of § 87(2)(b)'s head and his right arm, and he, PO Burke, and other officers moved § 87(2)(b) toward the entrance by jumping on, grabbing, and pushing him. § 87(2)(b) put his weight down, tensed his body, and said, “I’m not going anywhere.” PO Burke wrapped his left forearm around § 87(2)(b)'s neck from behind, with his forearm and bicep touching § 87(2)(b)'s neck, and his elbow in front of § 87(2)(b)'s neck. § 87(2)(b) dropped his chin to prevent PO Burke from restricting his breathing. PO Burke began walking § 87(2)(b) forward. § 87(2)(b) pushed PO Burke and moved his shoulders to shake PO Burke off. PO Young slammed § 87(2)(b)'s face and the front of his body into a door, causing facial bruising. In the parking lot, the officers slammed § 87(2)(b) to the ground, then held him down. § 87(2)(b) shook his body from side to side to get the officers off him. Unknown officers picked § 87(2)(b) up by his hands and feet and threw him into the ambulance, then placed him on a gurney. PO Young, PO Burke, and six other officers entered the ambulance and restrained § 87(2)(b). PO Young told a female EMT to sedate § 87(2)(b) and § 87(2)(b) began kicking his legs. Officers punched § 87(2)(b)'s legs to stop him from kicking. PO Young stood at § 87(2)(b)'s head, put a sheet over his face, and held the sheet down on either side of his face for no more than 60 seconds. The sheet tightly covered § 87(2)(b)'s entire face and obstructed § 87(2)(b)'s breathing. § 87(2)(b) screamed, “I can’t breathe, I can’t breathe!” § 87(2)(b) was in the back of the ambulance and said, “Take the sheet off his face, he can’t breathe!” § 87(2)(b) shook his head back and forth to get out from under the sheet, and an officer punched § 87(2)(b) in the face through the sheet, causing his tooth to go through his lip. § 87(2)(b) later informed § 87(2)(b) that he briefly lost consciousness while the sheet was over his head. § 87(2)(b) was removed via ambulance to § 87(2)(b) and was released the next morning.

Contact attempts to § 87(2)(b) were exhausted (**BR37-58**). § 87(2)(b) missed two interview appointments (**BR44, BR57**) and did not call back to schedule another interview.

The police radio recording of this incident (**BR21**) at 00:00 captures the 911 operator stating that there is a male emotionally disturbed person (EDP) at 803 Forest Avenue with a knife who is threatening to cut workers at the location. The operator is not able to determine if the individual displayed the knife to workers.

The following video footage is generally discussed in chronological order.

McDonald's CCTV footage (**BR02, runtime 04:28-19:40**) captures § 87(2)(b) entering the restaurant, ordering food, paying with a cash bill, and receiving his change. § 87(2)(b) then engages in an increasingly heated verbal dispute with staff; he yells (no audio), gesticulates, and stands inside the counter entrance. At 18:19, as PO Young and PO Bocchino enter the McDonald's, § 87(2)(b) walks from inside the counter entrance toward the officers, then returns to his original position and continues yelling at the workers. § 87(2)(b) then walks toward the officers a second time, holds his right hand out in a "stop" gesture, then begins walking back towards the counter entrance. At 18:30, PO Young follows § 87(2)(b) and puts his left hand on § 87(2)(b)'s chest. § 87(2)(b) grabs PO Young's left wrist. PO Bocchino and PO Young both grab § 87(2)(b)'s left arm, and PO Young swings his left arm over § 87(2)(b)'s shoulder and behind § 87(2)(b)'s neck. At 18:35, PO Mastrorilli and PO Burke enter and run toward the group as PO Young uses his legs to push § 87(2)(b)'s legs out from under him, and PO Young and PO Bocchino bring § 87(2)(b) to the floor onto his back. PO Burke supports § 87(2)(b)'s back as he goes to the floor. Once § 87(2)(b) is on the floor, PO Young, PO Bocchino, and PO Burke kneel over § 87(2)(b)'s torso and restrain him by holding his body. PO Mastrorilli holds § 87(2)(b)'s legs still, then bends § 87(2)(b)'s right leg over his left leg. At 18:46, PO Vega and PO Kaleem arrive, and PO Vega helps restrain § 87(2)(b)'s upper body in the same manner. At 19:05, § 87(2)(b) throws his right arm out toward the officers, who roll him onto his stomach, handcuff him, and then bring him to his feet. At 20:35, Captain Perez arrives. At 25:49, PO Burke and PO Young walk § 87(2)(b) out of the restaurant using the main entrance doors. Interactions at the doors are blurry, out of focus, and partially obscured by a wall. McDonald's exterior CCTV footage (**BR04**) does not clearly capture the portions of this incident in the parking lot and ambulance.

PO Young's BWC video (**BR07, runtime 01:01-02:30**) is consistent with the McDonald's CCTV footage and provides audio for this portion of the incident. It also clearly captures the portions of the incident at the door, parking lot, and ambulance. At runtime 01:13, as the officers approach and address § 87(2)(b) he turns, tells them to mind their business, then yells at the staff and accuses them of stealing his change. PO Young asks § 87(2)(b) to step back; he does not. At 06:00, PO Young says, "You've been drinking a little bit?" A handcuffed § 87(2)(b) says, "As I'm supposed to! I work, I have paystubs." His speech is somewhat slurred throughout the video. At 08:43, after § 87(2)(b) is handcuffed, PO Burke and PO Young begin walking § 87(2)(b) outside. PO Burke holds § 87(2)(b)'s left elbow, and PO Young holds his right elbow, but the camera does not capture the rest of § 87(2)(b)'s body. § 87(2)(b) appears to stiffen his legs, walks slowly, and says, "I'm not going nowhere."

PO Young's BWC video at runtime 08:43 (**BR07**), PO Burke's at 08:09 (**BR10**), and PO Bocchino's at 08:40 (**BR08**) capture the moment § 87(2)(b) reaches the exit door. At 08:43 of his BWC, PO Young leans forward and pushes open the interior glass door with his right hand

while holding § 87(2)(b)'s right arm with his left hand. § 87(2)(b) lurches forward and lowers his head, and a loud bang is heard as § 87(2)(b)'s forehead bangs into the door while PO Young is pushing it open. Neither officer touches § 87(2)(b)'s head or neck at any point or appears to push § 87(2)(b) in any fashion. PO Young says, "Why are you throwing your head in the glass, bro?"

PO Young's BWC video (**BR07**) at runtime 09:24, and PO Burke's at 08:55 (**BR10**), and PO Bocchino's at 09:27 (**BR08**) capture § 87(2)(b) outside the ambulance yelling, "You can't detain me! I'ma kick you all!" PO Young grabs § 87(2)(b)'s jeans by the right leg outside his knee. He, PO Burke, and PO Bocchino guide § 87(2)(b) to a sitting position, then down onto his back, and PO Young holds § 87(2)(b)'s left foot in the air. § 87(2)(b) says, "I'ma kick your face!" and kicks both legs. PO Young and the other officers roll § 87(2)(b) onto his stomach and hold his body down on the ground. PO Todaro's BWC (**BR13**) at 09:21 captures PO Todaro saying, "You wanna kick us? You trying to get arrested? You trying to get arrested? That's what's about to happen if somebody gets kicked. You're gonna spend the whole night with us." PO Burke's BWC video (**BR10**) provides additional context not visible in the previous two videos. At runtime 08:55 the video also captures how officers brought § 87(2)(b) to the ground. § 87(2)(b) bends forward as if standing on one foot while kicking backwards. PO Young grabs his leg and picks it up, then brings § 87(2)(b) to a sitting position. PO Burke holds his left arm throughout this process; another officer assists but is not visible. PO Young, PO Burke, and another officer then guide § 87(2)(b) onto his back, where he says, "I'll kick your face," and wriggles around on the ground. The officers roll him onto his left side, then his stomach.

PO Young's BWC video (**BR07**) at runtime 09:57 captures § 87(2)(b) saying, "I'ma bite you! I'ma bite somebody!" At 10:10, the officers lift § 87(2)(b) onto a gurney and hold him down. At 10:13, § 87(2)(b) struggles, kicks, says that his hands are bleeding, and screams. At 10:30, § 87(2)(b) says, "I'm gonna fucking kill you," and makes multiple spitting noises. PO Young says, "Do not fucking spit." At 11:04, § 87(2)(b) says, "Yo, bro, punch me again and I'ma kill you." A voice in the background says, "There's nobody punching you." § 87(2)(b) yells, "He punched me right here!" PO Bocchino's BWC video (**BR08**, runtime 11:00-11:20), PO Mastroilli's BWC video (**BR09**, runtime 10:40-11:00), PO Sciarillo's BWC video (**BR12**, runtime 10:35-10:50), PO Vega's BWC video (**BR06**, runtime 10:53-11:10), and PO Kaleem's BWC video (**BR14**, runtime 10:17-11:35) capture § 87(2)(b) who is on a stretcher outside the ambulance, stating that an officer punched him in the legs. No officer appears to punch § 87(2)(b).

PO Young's BWC video (**BR07**) at 11:29 captures § 87(2)(b) spitting at PO Kaleem and PO Young. At 11:51, an EMT tries to put a mask on § 87(2)(b)'s face, and he appears to bite the EMT's gloved hand, then makes another spitting noise. PO Young asks, "He got you?" and the EMT says, "Be careful because he got me." At 15:00, § 87(2)(b) tells PO Young, "Suck my dick," then makes another spitting noise. PO Todaro's BWC video (**BR13**) at runtime 18:02 captures § 87(2)(b) outside the ambulance saying, "I'm gonna kill myself." PO Kaleem and another male voice say, "Now you're definitely going." PO Sciarillo says, "And for that reason, we will be going to the hospital."

PO Young's BWC video (**BR07**) at 19:10 captures PO Young, PO Todaro, and EMTs sliding § 87(2)(b)'s gurney into the ambulance, and PO Young, PO Todaro, and PO Burke accompanying § 87(2)(b) inside the ambulance. § 87(2)(b) immediately begins thrashing and kicking his legs against the stretcher straps. PO Todaro holds his legs down. At 19:30, § 87(2)(b) makes a spitting noise, and PO Young says, "Oh, come on. You're acting like a child, bro." PO Todaro and PO Young hold the hood of § 87(2)(b)'s sweatshirt over the side of his face and press his head against the pillow without covering his nose and mouth. At 19:45, § 87(2)(b) says, "When I get

up, I'ma spit on you. I'ma spit on you, watch." PO Young lifts the bottom of § 87(2)(b)'s sweatshirt and holds it in front of § 87(2)(b)'s nose and mouth. At 20:02, § 87(2)(b) yells, "I gotta breathe! Get off of my face!" The EMT says, "We're sedating him." § 87(2)(b) yells, "No, you're not, I can't breathe!" PO Todaro lifts the hoodie, exposing § 87(2)(b)'s eyes, and says, "Then breathe." § 87(2)(b) yells, "So then get off my face!" A voice says, "You're on your side," and another voice says, "You're literally breathing." At this point, PO Todaro is no longer pressing § 87(2)(b)'s head into the gurney, and his nose and mouth are visible. § 87(2)(b) turns his head and presses his own face into the gurney, then repeatedly says, "Let go of my face." PO Todaro repeatedly says, "You can breathe, I'm not on your face!" At 20:48, while EMTs sedate § 87(2)(b) he yells, "Let go – I can't breathe!" PO Todaro says, "Relax, then!" § 87(2)(b) repeatedly yells, "Move my hoodie from my face!" PO Todaro repeatedly says, "Your hoodie's not on your face." PO Young and PO Todaro hold the hood and sweatshirt in front of § 87(2)(b)'s face, but the view of his face is not clear. At 21:23, § 87(2)(b) yells, "Let go of my hoodie! PO Todaro says, "You going to listen to me?" § 87(2)(b) says, "I'm good!" PO Todaro says, "You good?" § 87(2)(b) yells, "I need to breathe! I'm asthmatic!" PO Todaro says, "If you spit again, it's going right back," and lowers the hood. At 22:22, § 87(2)(b) makes a spitting noise. At 22:32, an EMT and PO Todaro hold the end of the gurney's white sheet up vertically in front of § 87(2)(b)'s face, apparently to block his spit, and § 87(2)(b) spits at the sheet. An EMT sedates § 87(2)(b) then lowers the sheet, and § 87(2)(b) spits at her. At 23:00, PO Young holds the sheet up and over § 87(2)(b)'s body. § 87(2)(b) continues speaking, growling, and spitting beneath the sheet. At 24:43, § 87(2)(b) says, "Yo, I can't breathe! Let go of my face," then at 25:02, he screams, "You're suffocating me! I can't breathe!" At this point, PO Young holds the sheet vertically in front of § 87(2)(b)'s face, and § 87(2)(b) presses his own face against the sheet. He has space to move away from the sheet, and no officer holds the sheet down or against his head. This is demonstrated at 25:18 when § 87(2)(b) begins throwing his head back and slamming it against a cabinet. PO Young loosens the sheet after § 87(2)(b) bangs his head, and then again at 25:31, when § 87(2)(b) makes a snoring noise and begins succumbing to sedation. At 26:34, § 87(2)(b) repeatedly says, "Get off my face! I can't breathe!" His nose and mouth are behind the sheet and not visible. At 27:35, an EMT says, "You keep kicking!" PO Young's BWC does not capture § 87(2)(b)'s legs. § 87(2)(b) says, "I'm not kicking!" The EMT says, "You're kicking and spitting, bro!" § 87(2)(b) says, "As I should!" At 28:27, § 87(2)(b) makes several spitting noises. At 29:42, § 87(2)(b) quietly says multiple times, "I can't breathe," then starts screaming that he cannot breathe. EMT says, "Why can't you breathe? Nobody's laying on your chest, you're laying sideways, and you're passing good air. If you weren't able to breathe, you wouldn't be able to speak in full sentences like that." § 87(2)(b)'s face is not visible in PO Young's BWC footage at this point.

PO Todaro's BWC video (BR13, runtime 19:03-30:05) also captures the events inside the ambulance. At 19:03, § 87(2)(b) makes a spitting noise. PO Todaro pulls § 87(2)(b)'s sweatshirt hood over his face, then presses the side of § 87(2)(b)'s head against the gurney. PO Todaro holds the hood straight out, and it is not wrapped tightly around § 87(2)(b)'s face. At 19:17, PO Young pulls the bottom of § 87(2)(b)'s sweatshirt in front of his covered face. At runtimes 19:33, 19:45, 20:19, 24:15, 26:05, and 29:14, § 87(2)(b) states that he cannot breathe. However, each time, § 87(2)(b)'s face is either not touching any fabric, or makes only incidental contact with the fabric. The only time fabric is tightly pressed against § 87(2)(b)'s face is when he pushes his own face against it. Per PO Todaro and PO Young's BWC footage, no officer appears to punch § 87(2)(b) while his face is covered by the sheet, and he never complains of being punched in the face in the ambulance or at any other point. Neither officer's BWC video captures § 87(2)(b) entering the ambulance at any point.

§ 87(2)(g) § 87(2)(b) s

behavior and the 911 report led PO Young to believe that § 87(2)(b) had a knife and might not be in his right mind. As officers arrived, § 87(2)(b) screamed at the workers, “I’m a beat your ass if I don’t get my money.” PO Young believed that § 87(2)(b) was going to harm workers when he walked behind the counter, and he tried to stop § 87(2)(b) by grabbing him from behind. § 87(2)(b) swung his left arm, turned quickly, and said, “Don’t touch me.” In response, PO Young and PO Bocchino used a forcible takedown against § 87(2)(b) then handcuffed him with other officers. PO Young asked § 87(2)(b) if he had been drinking, and § 87(2)(b) said he had. PO Young determined that § 87(2)(b) was heavily intoxicated due to his irate behavior and the heavy scent of alcohol on his breath, and he told § 87(2)(b) that he was being taken to the hospital for a mental evaluation. Later, § 87(2)(b) stated that he was going to harm himself. EMTs made the final decision to remove § 87(2)(b). PO Young did not believe that he grabbed the back of § 87(2)(b)’s head to force him to exit McDonald’s. PO Young did not see PO Burke use a chokehold against § 87(2)(b). PO Young did not recall slamming § 87(2)(b) into a window, pushing him face-first into a door, or slamming him to the ground outside McDonald’s. § 87(2)(b) threatened to kick officers, so the officers picked § 87(2)(b) up, placed him onto a stretcher, strapped him down, and held him on the stretcher. § 87(2)(b) was lodged in the ambulance while on the stretcher, so it would have been impossible for officers to throw him inside. PO Young placed a blanket in front of § 87(2)(b) so he could not spit on the officers, but he did not believe it restricted his breathing, and he left room for § 87(2)(b) to breathe. PO Young did not believe § 87(2)(b) lost consciousness. PO Young did not recall pressing the sheet down on either side of § 87(2)(b)’s head or punching § 87(2)(b) in the face while the sheet covered his face. He did not see any other officer do this or learn that this happened.

§ 87(2)(g)

PO Todaro reviewed PO Young’s BWC video (BR07) from 09:24 to 09:49 and confirmed that he was the officer who says, “Are you trying to get arrested?”

Officers may use force when it is reasonable to place a person in custody or to prevent escape from custody. Officers’ use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject’s voluntary compliance, must be prioritized. Officers shall “apply no more than the reasonable force necessary to gain control.” Factors to be considered in determining whether the use of force is reasonable include the following: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject; members of service or bystanders; whether the subject is actively resisting custody; whether the subject is attempting evade arrest by flight; the number of subjects in comparison to the number of members of service; size, age and condition of the subject in comparison to the member of service; subject’s violent history if known; presence of hostile crowd or agitators; and whether the subject is apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase likelihood of violence. Patrol Guide Procedure 221-01 (BR25).

§ 87(2)(b) yelled and screamed at McDonald’s employees, entered the private area of the store, and allegedly threatened to cut employees with a knife. When PO Young and PO Bocchino arrived, they encountered an irate § 87(2)(b) who was screaming at employees and standing in a private area of the establishment. § 87(2)(b) ignored PO Young’s order to step back, then began walking behind the counter toward employees. PO Young, who believed at this point that § 87(2)(b) had a knife, tried to stop § 87(2)(b) to protect employees by placing a hand on § 87(2)(b)’s chest. § 87(2)(b) grabbed PO Young’s arm instead of complying. In response, PO Young and PO Bocchino used force to bring § 87(2)(b) to the floor, restrain him, and handcuff him. The takedown was controlled, and PO Burke supported § 87(2)(b)’s back on the way

down. § 87(2)(b) alleged that PO Young and PO Burke jumped on him, grabbed him, and pushed him to remove him from McDonald's, but BWC and CCTV footage shows that PO Young and PO Burke merely held § 87(2)(b)'s arms and walked him out of the location. § 87(2)(b) alleged that officers slammed him to the ground outside the McDonald's, and that he hit the ground face-first, but BWC video footage shows that PO Young, PO Burke, and PO Bocchino guided § 87(2)(b) to a sitting position, then brought him onto his back and rolled him onto his stomach. § 87(2)(g)

it is recommended that **Allegations A, B and F** be closed as **within NYPD guidelines**.

§ 87(2)(b) alleged that PO Burke used a chokehold against him while removing him from the restaurant and attempted to restrict his breathing. CCTV and BWC footage shows that neither PO Burke nor PO Young touched § 87(2)(b)'s head or neck while removing him from the restaurant, and that PO Burke never used a chokehold on § 87(2)(b). Therefore, it is recommended that **Allegations G and H** be closed as **unfounded**.

§ 87(2)(b) alleged that PO Young intentionally slammed his head into an interior door while removing him from the location. CCTV and BWC video footage shows that § 87(2)(b) pulled away from officers, lunged toward the door, and hit his own head against the door while PO Young pushed the door open with his right hand and held § 87(2)(b)'s arm with his left hand. Therefore, it is recommended that **Allegation I** be closed as **unfounded**.

§ 87(2)(b) threatened to kick the officers while he was on the ground. In response, PO Todaro tells him that if he kicks officers, he will be arrested. PO Todaro retired from the NYPD on November 14, 2023 (**BR32**). It is therefore recommended that **Allegation J** be closed as **miscellaneous – subject retired**.

Officers must be courteous and respectful when interacting with members of the public. NYPD Patrol Guide Procedure 203-09 (BR). However, in prior disciplinary cases, the NYPD has held that the use of profane remarks during stressful situations or while an officer is trying to get a chaotic situation under control, does not constitute misconduct. DAO-DCT Disciplinary Case No. 2017-17005 (BR36).

§ 87(2)(b) repeatedly spit at officers and EMTs throughout the incident. While multiple officers worked together to hold § 87(2)(b) down on the ambulance and overcome his attempts to escape, PO Kaleem told § 87(2)(b) "Do not fucking spit." Later, in the ambulance, PO Young, PO Burke, and PO Todaro tried to control § 87(2)(b)'s body as he flailed and tried to escape the stretcher. § 87(2)(b) attempted to spit at officers again, and PO Young says, "Oh, come on. You're acting like a child, bro," to § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation K** and **Allegation M** be closed as **within NYPD guidelines**.

§ 87(2)(b) alleged that unknown officers threw him into the ambulance by his hands and feet, then punched him in the legs, and that an unknown officer punched him in the face while it was under the sheet. BWC footage shows that officers and EMTs lodged § 87(2)(b) in the ambulance on a stretcher, and that no officer punched him in the legs or face in the ambulance or otherwise. It is therefore recommended that **Allegation L** be closed as **unfounded**.

An officer can place an “emotionally disturbed person” in custody if the person does not voluntarily seek medical assistance, provided that the person appears to be mentally ill or temporarily deranged, and that the person’s behavior could result in serious injury to themselves or others. Patrol Guide Procedure 221-13 (BR26).

A 911 caller reported that § 87(2)(b) threatened McDonald’s employees with a knife. Captain Perez, the highest-ranking officer on scene throughout the incident, arrived shortly after § 87(2)(b) was handcuffed and supervised the officers until the ambulance left for the hospital. BWC footage captures § 87(2)(b) slurring his words and admitting that he has been drinking. § 87(2)(g)

Therefore, it is recommended that **Allegation O** be closed as **within NYPD guidelines**.

§ 87(2)(b) testified that PO Young held a sheet over his face and pressed it against the gurney on both sides of his head for up to sixty seconds, which prevented him from breathing and, per § 87(2)(b) caused him to lose consciousness. BWC shows that PO Young and PO Todaro held § 87(2)(b)’s sweatshirt and a sheet over and in front of his face to block his persistent attempts to spit on them. PO Young and PO Todaro never used the sheet in the manner described by § 87(2)(b). § 87(2)(b) did lose consciousness during this incident, but only after being sedated at least three times, and his nose and mouth were not obstructed while en route to the hospital. BWC footage also shows that § 87(2)(b) never entered the ambulance. § 87(2)(b) complained that he could not breathe many times throughout the incident, but BWC shows that there was ample space between § 87(2)(b)’s face and the various fabrics they placed in front of it. § 87(2)(g)

§ 87(2)(b) continued complaining that he could not breathe when there was no fabric touching his face. For these reasons, it is recommended that **Allegation P** be closed as **unfounded**.

Allegation (C) Abuse of Authority: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Salvatore Todaro searched § 87(2)(b)

Allegation (D) Abuse of Authority: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Nicholas Bocchino searched § 87(2)(b)

Allegation (E) Abuse of Authority: On January 14, 2023, at 803 Forest Avenue in Staten Island, Police Officer Stephen Vega searched § 87(2)(b)

§ 87(2)(b) testified (**BR18**) that once he was handcuffed, PO Young removed his baseball cap, searched his pants’ pockets, removed his ID and money, and placed them inside the baseball cap. § 87(2)(b) did not testify that any officer made physical contact with his intimate areas, sexual or otherwise.

PO Young’s BWC video (**BR07**, runtime 01:42-05:25), PO Burke’s first BWC video (**BR10**, runtime 01:05-02:40), PO Bocchino’s BWC video (**BR08**, runtime 01:42-01:50, 03:12-03:57), and PO Todaro’s BWC video (**BR13**, runtime 01:56-04:10) capture PO Bocchino searching § 87(2)(b)’s sweatshirt, jacket, and jeans pockets; PO Todaro frisking § 87(2)(b)’s chest and searching § 87(2)(b)’s jacket, jeans, and sweatshirt pocket; and PO Vega searching § 87(2)(b)’s jeans pocket. PO Mastroilli’s BWC video (**BR09**, runtime 03:41-4:00) captures him and PO Kaleem informing the officers that McDonald’s staff did not observe § 87(2)(b) holding a knife, and PO Burke’s first BWC video (**BR10**, runtime 05:05-05:20) captures PO Bocchino searching § 87(2)(b)’s jeans thereafter. PO Todaro’s BWC video at 02:43 captures § 87(2)(b) saying, “Stop digging in my butt,” as PO Bocchino searches § 87(2)(b)’s rear

jeans pocket. He says this again in PO Burke's first video at 02:40 and 05:05, but PO Bocchino's hands are not visible in these moments in any of the videos as he searches § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

PO Todaro testified (BR24) that he searched § 87(2)(b)'s pants pocket because the 911 job involved a knife; he did not recall if he searched anywhere else. When an individual is being forcibly removed to a hospital, officers must search the individual for weapons before they get in an ambulance for the safety of officers, EMTs, and hospital staff. PO Todaro did not remember exactly what items he found other than change, and he did not think any officers recovered any weapons from § 87(2)(b)

§ 87(2)(g)

PO Burke (BR23) did not recall any officer searching § 87(2)(b)

Once an "emotionally disturbed person" has been restrained, officers should remove property that is dangerous to life or will facilitate escape. Patrol Guide Procedure 221-13 (BR26). An officer may frisk an individual if the officer has reasonable suspicion that the individual poses a threat of physical injury by virtue of being armed. People v. De Bour, 40 N.Y.2d 210 (BR35).

PO Todaro retired from the NYPD on November 14, 2023 (BR32). It is therefore recommended that **Allegation C** be closed as **miscellaneous – subject retired**.

As previously discussed, central dispatch informed the officers that § 87(2)(b) had a knife and was threatening to cut employees, and officers encountered an aggressive and uncooperative § 87(2)(b) at McDonald's. The officers searched § 87(2)(b)'s pockets immediately after he was handcuffed. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations D and E** be closed as **within NYPD guidelines**.

Allegation (N) Abuse of Authority: On January 14, 2023, at 803 Forest Avenue in Staten Island, an officer interfered with § 87(2)(b)'s use of a recording device.

§ 87(2)(b) testified that § 87(2)(b) told him that he tried to record what was happening with his cell phone, but officers pushed him back and prevented him from recording. § 87(2)(b) did not observe this, specify when this happened, or identify a subject officer.

Contact attempts to § 87(2)(b) who missed his scheduled interview (BR19), were exhausted (BR 37-58), and § 87(2)(b) did not reschedule his interview appointment.

None of the BWC footage (BR06-14) appears to capture § 87(2)(b) attempting to film at any point. PO Vega's, PO Mastrorilli's, and PO Kaleem's BWC videos end before the ambulance leaves the scene.

PO Young (BR22), PO Burke (BR23), and PO Todaro (BR24) did not recall any officer interfering with § 87(2)(b)'s recording in any fashion.

§ 87(2)(g)

it is recommended that **Allegation N** be closed as **alleged victim uncooperative**.

Allegation (Q) Abuse of Authority: On January 14, 2023, en route to § 87(2)(b), Police Officer Kevin Young failed to provide § 87(2)(b) with a business card.

Allegation (R) Abuse of Authority: On January 14, 2023, en route to § 87(2)(b), Police Officer Jamar Burke failed to provide § 87(2)(b) with a business card.

Allegation (S) Abuse of Authority: On January 14, 2023, en route to § 87(2)(b), Police Officer Salvatore Todaro failed to provide § 87(2)(b) with a business card.

PO Young's BWC video (**BR07, runtime 27:03-27:20**) captures § 87(2)(b) in the ambulance saying, "I want your card, your card, her card. And then you stuck me needle. I want all your card." He mumbles this statement and appears to be succumbing to sedation.

None of the officers in the ambulance recalled any officer providing § 87(2)(b) with a business card. PO Young (**BR22**) testified that he did not give § 87(2)(b) a business card because he had already handed out all his business cards for the day, and he did not recall writing down his information for § 87(2)(b) or providing his information in any form. PO Burke (**BR23**) stated that he did not hear § 87(2)(b) request business cards because of his yelling and kicking, the general commotion, and being occupied restraining § 87(2)(b)'s feet. PO Todaro (**BR24**) stated that he did not give § 87(2)(b) a business card due to his extremely violent behavior; giving § 87(2)(b)'s business card was "the last thing," on PO Todaro's mind.

NYC Administrative Code § 14-174 (**BR33**) and NYPD Administrative Guide Procedure 304-11 (**BR34**) state that an officer must provide a business card to any civilian upon request unless the interaction results in a summons or arrest, or if exigent circumstances (i.e. physical resistance, flight, imminent danger of physical injury or damage to property, or other factors that make such procedure impractical) are present. An officer must legibly write down their information for the civilian, or allow the civilian to write it down, if their supply of business cards is depleted.

§ 87(2)(g)

it is recommended that **Allegations Q and R** be closed as **substantiated**.

PO Todaro retired from the NYPD on November 14, 2023 (**BR32**). It is therefore recommended that **Allegation S** be closed as **miscellaneous – subject retired**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR29**).

- PO Kevin Young has been a member-of-service for four years and has been a subject in one CCRB complaint and six allegations, none of which were substantiated. § 87(2)(g)
- PO Nicholas Bocchino has been a member of service for two years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Jamar Burke has been a member of service for eight years and has been a subject in two CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)
- PO Salvatore Todaro was a member of service for an unknown length of time, and this is the first CCRB complaint to which he was a subject.
- PO Stephen Vega has been a member of service for two years and has been a subject in one CCRB complaint and three allegations, none of which were substantiated. § 87(2)(g)
- Captain Ronald Perez has been a member of service for 21 years and has been a subject in CCRB complaints and 17 allegations, of which nine were substantiated:
 - **201000595** involved a substantiated allegation of Abuse of Authority – Refusal to Provide Name/Shield Number. The Board did not issue recommendations in this case, and the NYPD imposed instructions.
 - **201002999** involved substantiated allegations of Abuse of Authority – Frisk, Abuse of Authority – Gun Drawn, Abuse of Authority – Retaliatory Summons, Abuse of Authority – Search (of Person), Abuse of Authority – Strip-Searched, Abuse of Authority – Threat of Arrest, Abuse of Authority – Vehicle Search, and Abuse of Authority – Vehicle Stop. The Board did not issue recommendations in this case, but Capt. Perez was served with charges, and the NYPD imposed instructions for all allegations.
 - § 87(2)(g)
- PO Anza Kaleem has been a member of service for five years, and this is the first CCRB complaint to which he was a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of October 20, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**BR30**).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

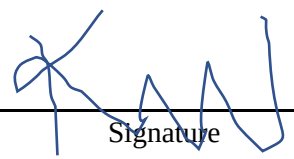
[REDACTED]

[REDACTED]

§ 87(2)(g)

[REDACTED]

Squad No.: 13

Investigator:	 _____ Signature	INV Katherine White _____ Print Title & Name	03/11/2024 _____ Date
Squad Leader:	<i>JP Lozada</i> _____ Signature	IM Jean-Paul Lozada _____ Print Title & Name	03/11/2024 _____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date